

Before the Federal Maritime Commission, Washington, DC.

Docket No. 25-08

FormuKleen, Inc.
(Complainant)

vs.

Top Shipping Systems, Corp.
(Respondent)

**COMPLAINANT’S OPPOSITION TO RESPONDENT’S MOTION FOR EXTENSION
OF TIME**

Complainant FormuKleen, Inc., by and through its representative Sara Dandan, respectfully opposes Respondent’s Motion for Extension of Time and states as follows:

**1. THE COMMISSION’S RULES DO NOT PERMIT A SUBSTITUTION OF COUNSEL
TO DELAY COMPLIANCE**

The Commission’s Rules of Practice and Procedure expressly provide that “Substitution of counsel or representative will not, by itself, be considered good cause for delaying a proceeding.” 46 C.F.R. § 502.23(d). Respondent’s motion rests entirely on the fact that new counsel was retained on the morning of April 10, 2026. That is precisely the circumstance the Commission’s rule was written to address.

Respondent’s decision to change counsel five days before an ALJ-ordered deadline does not reset the clock. The obligation to comply with the ALJ’s April 1, 2026 Order belongs to Respondent, not to whichever lawyer it chooses to retain five days before the deadline.

Respondent has been aware of its discovery obligations since at least September 2025, when it served its initial responses. The ALJ's April 1, 2026 Order gave Respondent a full fourteen days to comply. Respondent chose not to use that time to complete the required production and instead retained new counsel at essentially the last minute. When Respondent filed the present motion, it still had five full days remaining to comply with the Commission's Order. As of Monday, when the Commission receives these filings, Respondent will still have three full business days to comply with the Commission's Order, and Respondent admits in its own motion that the document-gathering process has already begun. That alone undercuts any claim that additional time is necessary.

2. RESPONDENT HAS HAD MORE THAN SUFFICIENT TIME TO COMPLY

The discovery at issue is not new. Complainant served its Requests for Production and Interrogatories months ago. Respondent's initial responses were served on September 16, 2025. Since that date, Respondent has had approximately seven months to gather, review, and produce responsive documents. The April 1, 2026 Order did not create new obligations. It required Respondent to supplement discovery that had already been overdue for months and to provide a sworn declaration because vague assurances were no longer enough.

Respondent's own motion concedes that "Respondent...has begun to gather the requested documents." (Motion ¶ 3). If Respondent is already gathering documents, there is no reason it cannot complete that process by April 15. The documents either exist in Respondent's files or they do not. New counsel does not need to "review the procedural history" in order for the Respondent to locate business records in Respondent's own offices, email systems, and

databases, which is exactly what the ALJ's declaration order requires Respondent to do and describe.

3. AN EXTENSION WOULD ONLY PROLONG A DISCOVERY FAILURE THE ALJ HAS ALREADY ADDRESSED

This proceeding has already been delayed by Respondent's deficient discovery responses. Respondent initially claimed it was "still checking" for responsive documents. It then claimed that key internal communications were "verbal." It produced documents that were not responsive to the actual requests. The ALJ's April 1, 2026 Order specifically noted concern that Respondent may have kept poor records and/or spoliated evidence, based in part on Respondent's statement that more documents would be produced "assuming they are still available."

Respondent's request is not harmless. The ALJ ordered a sworn declaration because Respondent's discovery responses raised concern about poor recordkeeping and/or spoliation. An extension would only prolong the discovery failure the April 1, 2026 Order was meant to address. Respondent claims that no one would be prejudiced. Complainant vehemently argues otherwise. Respondent's failure to meet basic discovery obligations has already derailed the schedule of this case, required motion practice and ALJ intervention, and forced Complainant to reorganize its own preparation around delays entirely of Respondent's making. Respondent now seeks to take another two weeks from a case whose schedule has already been disrupted and reset because of Respondent's own conduct, even after the ALJ signaled that the case would not be extended indefinitely. That is prejudice, not good cause. The Commission's time and Complainant's time are not Respondent's to take.

4. THE CERTIFICATION OF CONFERENCE

Respondent's certification includes a false characterization of an unrecorded phone call. Complainant's representative did not laugh at the request because nothing about it is funny. Respondent has delayed discovery for months, required motion practice to obtain basic compliance, and is now seeking yet more time after the ALJ entered an Order requiring a sworn declaration because of concerns about Respondent's recordkeeping and/or spoliation. Complainant emphatically stated that this is a stall tactic, that this has been going on for months, that an Order has already been entered requiring compliance by Wednesday, April 15, and that Complainant's position is that Wednesday April 15 remains the deadline for compliance. Counsel's false and self-serving description of the call is irrelevant to whether Respondent has shown good cause for an extension. The only point that matters is that Complainant did not and does not consent.

Additionally, Respondent's new counsel did not actually attempt to confer in good faith. Counsel placed a call at 4:00 p.m. on a Friday, stated that a motion was being filed, and then sought to portray that single perfunctory call placed before an already-written motion was filed as good-faith conferral. It was not. It was a meaningless box-check before filing a baseless motion as part of Respondent's continuing effort to evade its obligations. Complainant's representative takes seriously any mischaracterization of her professional conduct in filings before the Commission and will not tolerate unsupported and self-serving assertions presented as fact. Such statements are improper, lack any evidentiary basis, and should be disregarded, and the parties should be directed to confine their submissions to the record and to matters relevant to the issues before the Commission.

5. CONCLUSION

Complainant vigorously objects to any extension and maintains that no good cause exists. If any enlargement is granted, Respondent should still be required to comply by April 15, 2026 with the portion of the April 1, 2026 Order compelling supplementation of Interrogatory No. 1. This alternative relief is necessary to mitigate the prejudice that would result from any extension. Without immediate production of the identities of the relevant third parties, Respondent would retain exclusive control over information Complainant needs while using the enlarged period to continue delaying compliance. Complainant anticipates further motion practice and continued delay. This alternative request is made only in the event the ALJ grants Respondent relief over Complainant's objection, and it should not be construed as consent or as any concession that an extension would be proper.

For the foregoing reasons, and pursuant to 46 C.F.R. § 502.23(d), Complainant respectfully requests that Respondent's Motion for Extension of Time be denied and that Respondent be ordered to comply with the ALJ's April 1, 2026 Order by the original April 15, 2026 deadline.

Respectfully submitted,

Sara Dandan

Licensed to practice before the Commission and in good standing

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Date: 04/12/2026

CERTIFICATE OF SERVICE

I certify that on April 12th, 2026, a true and correct copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondent:

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